

NATIONAL AERONAUTICS AND SPACE ADMINISTRATION
Headquarters (HQ)
Justification for an Exception to Fair Opportunity
Under the Commercial Satellite Data Acquisition (CSDA) Program
Indefinite Delivery Indefinite Quantity (IDIQ) Contract No. 80HQTR24DA005 Order No.
80HQTR24FA043 Modification 1

Description of the action being approved: This justification documents the basis for issuing a modification to an order under the Commercial Satellite Data Acquisition (CSDA) Program Indefinite Delivery Indefinite Quantity (IDIQ) Contract No. 80HQTR24DA005 with SPACE SCIENCES AND ENGINEERING (dba PlanetiQ) using an exception to the Fair Opportunity process.

Description of the supplies or services required to meet the agency's needs: This action is a firm-fixed price order for radio occultation data products from PlanetiQ's commercial satellite constellations for evaluation purposes to assess quality and utility of the data. The previous task order executed didn't provide adequate data to complete the CSDA funded projects for evaluations of the utility of the data. There is additional data needed for a longer timeframe, especially during the summer months. The program has determined there is a need for Ionosphere Total Electron Content (TEC) during the months of June, July, and August. The program also determined there is a need for Ionosphere Total Electron Content (TEC) data for the period of four days in May, as well as, 2 days in October. There is also an identified need for the Neutral Atmosphere Radio Occultation products for the same period in October.

The total estimated price of the proposed order modification is \$420,042; and the estimated period of performance will remain twelve (12) months from base award.

Identification of Exception to Fair Opportunity:

- ☐ FAR 16.505(b)(2)(i)(A), The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays.
- ☒ FAR 16.505(b)(2)(i)(B), Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.
- ☐ FAR 16.505(b)(2)(i)(C), The order must be issued on a sole-source basis in the interest of economy and efficiency because it is a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order.
- ☐ FAR 16.505(b)(2)(i)(D), It is necessary to place an order to satisfy a minimum guarantee.

- ☐ FAR 16.505(b)(2)(i)(E), For orders exceeding the simplified acquisition threshold a statute expressly authorizes or requires that the purchase be made from a specified source.
- ☐ FAR 16.505(b)(2)(i)(F) In accordance with section 1331 of Public Law 111-240 (15 U.S.C. 644(r)), contracting officers may, at their discretion, set aside orders for any of the small business concerns identified in 19.000(a)(3). When setting aside orders for small business concerns, the specific small business program eligibility requirements identified in part 19 apply.

Determination that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer's signature on this document indicates that the Contracting Officer has determined that the anticipated cost to the government will be fair and reasonable. The Contractor has an existing contract pricelist previously determined to be fair and reasonable. Prior to execution of the contractual instrument, an analysis will be performed comparing to the existing pricelist and similar, but not interchangeable, products of other CSDA IDIQ holders. The analysis will ensure that the final agreed-to pricing for the order is fair and reasonable. The proposed price(s) will be evaluated by the Contracting Officer's Representative and the Contracting Officer in conjunction with a management representative(s) of the Earth Science Division to determine that the price(s) associated with the unique data set and the identified supporting data and data use authorization are fair and reasonable.

Other Facts:

A statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for the supplies or services is made:

The Agency will continue to examine the market for alternative solutions or new sources. At present, NASA is considering plans to formally re-engage the community every one to two years through its on-ramping efforts and in accordance with the contract as current contract holders complete the Evaluation Phase and are able to compete in the Sustainment Phase for Task Order awards.

Current CSDA IDIQ contract holder Spire provides similar solutions who currently have an active task order and are providing data to the CSDA program. This modification for this task order is to conduct the necessary assessment and full evaluation of PlanetiQ data. Once the Evaluation Phase for this vendor is complete, they will advance to the Sustainment Phase where they will be able to compete amongst other CSDA vendors for future task orders. This could potentially increase future competition for these requirements once their data has been evaluated.